No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Carson City, Nevada.

The tract is meadow land located near the easterly foothill of Shell Creek Mountain and about one-quarter of a mile east of North and South Road. It is watered from mountain streams and springs.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

DECEMBER 1, 1947.

[F. R. Doc. 47-10808; Filed, Dec. 9, 1947; 8:49 a. m.]

[Public Land Order 428]

IDAHO

REVOCATION OF EXECUTIVE ORDER 1441 OF DECEMBER 4, 1911

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Executive Order No. 1441 of December 4, 1911, withdrawing the following-described public lands in Idaho for use by the Forest Service of the Department of Agriculture as the Bell Mountain Administrative Site in connection with the administration of the Lemhi National Forest, now the Challis National Forest, is hereby revoked:

BOISE MERIDIAN

T. 10 N., R. 27 E.,
Sec. 29, W½E½NE¼, W½NE¼, and SE¼NW¼.

The areas described aggregate 160 acres.

The lands are within Idaho Grazing District No. 3. This order shall therefore become effective immediately as to the administration of grazing on the lands by the Bureau of Land Management, but shall not otherwise become effective to change the status of such lands until 10:00 a. m. on February 2, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from February 2, 1948, to May 3, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup., 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Application by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from January 14, 1948, to February 2, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on February 2, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on May 4, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from April 15, 1948, to May 4, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on May 4, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Blackfoot, Idaho, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Blackfoot, Idaho.

The lands are located in a narrow valley bottom. The topography is rolling. The soil varies in texture from loam to gravel with gravelly subsoil. The predominating cover is sagebrush with willows at the lower elevations.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

DECEMBER 1, 1947.

[F. R. Doc. 47-10809; Filed, Dec. 9, 1947; 8:49 a. m.]

[Public Land Order 429]

WASHINGTON

REVOKING PUBLIC LAND ORDER 194 OF NOVEMBER 24, 1943 WITHDRAWING LANDS FOR THE USE OF THE WAR DEPARTMENT AS AN ANTI-AIRCRAFT FIRING RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Public Land Order No. 194 of November 24, 1943 (43 CFR, 1943 Supp., Appendix) withdrawing the public land in the hereinafter described areas for use of the War Department as an anti-aircraft firing range is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 194 shall cease upon the date of this order. Thereupon the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on February 2, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from February 2, 1948, to May 3, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup., 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from January 14, 1948, to February 2, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on February 2, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on May 4, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from April 15, 1948, to May 4.